



# Court Procedures Manual

Clearwater County, Sixth Judicial Circuit

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How criminal, civil, and traffic cases move through the courts,  
written so that someone with no legal training can follow along.

Volume I of the Clearwater County Legal System | Revision 08/2026

Clearwater County is a fictional jurisdiction. Nothing in this manual is legal advice.

## Before You Start

This manual sets out how the courts of Clearwater County operate. The county runs a two-tier trial system - a County Court and a Circuit Court sitting under one judicial circuit - with an appellate court above them and the Supreme Court of the State above that. The structure is deliberately simple at the bottom, where most people encounter it, and more demanding at the top, where the work is technical.

It is written for two audiences at once: someone who has just been arrested or sued and needs to know what happens next, and someone practising in these courts who needs the procedure stated precisely. Chapters 1 to 6 answer the first question. Chapters 7 to 9 answer the second.

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### If you read nothing else, read this

Three rules cover ninety per cent of problems. ONE: everything that happens in court has to be written down on a form and given to the Clerk, or it did not happen. TWO: the person on the other side gets a copy of everything you file, every time, with no exceptions. THREE: no deadline in this manual can be fixed after it passes, so calendar every one of them the day you learn of it.

## Who Does What

| Role                         | What They Do                                                                             | Which Side            |
|------------------------------|------------------------------------------------------------------------------------------|-----------------------|
| Judge                        | Runs hearings, rules on motions, sets bond, imposes sentence, signs orders               | Neutral               |
| Magistrate / Hearing Officer | Handles traffic hearings, first appearances, and routine matters                         | Neutral               |
| Clerk of Court               | Receives filings, assigns case numbers, keeps the docket, issues summonses and subpoenas | Neutral               |
| Bailiff                      | Keeps order in the courtroom, handles in-custody defendants                              | Neutral               |
| State Attorney (prosecutor)  | Decides what to charge, negotiates pleas, tries the case for the State                   | The State             |
| Public Defender              | Represents defendants who cannot afford a lawyer, at no cost to them                     | The defendant         |
| Private attorney             | Represents anyone who hires them, criminal or civil                                      | Their client          |
| Law enforcement officer      | Investigates, arrests, writes the affidavit, testifies                                   | Witness for the State |
| Probation officer            | Supervises people on probation, reports violations                                       | Neutral to the Court  |

## CHAPTER 1 - THE TWO COURTS

Clearwater County has two trial courts. Which one hears your case depends entirely on how serious it is. You do not get to choose.

|                 | County Court                                                         | Circuit Court                                                                    |
|-----------------|----------------------------------------------------------------------|----------------------------------------------------------------------------------|
| Criminal        | Misdemeanours, ordinance violations, criminal traffic                | All felonies, plus any misdemeanour charged with a felony from the same incident |
| Civil           | Disputes up to \$50,000, landlord-tenant, small claims up to \$8,000 | Disputes over \$50,000, injunctions, declaratory judgments                       |
| Traffic         | Every traffic citation, civil and criminal                           | None                                                                             |
| Appeals from it | Circuit Court sitting as an appellate court                          | Appellate Court of Florida                                                       |

Above both sits the **Appellate Court of Florida**, which reviews decisions for legal error, and above that the **Supreme Court of the State of Florida**, which takes only a handful of cases that matter to the whole State. Neither of those courts holds trials, hears witnesses, or looks at new evidence.

## CHAPTER 2 - HOW A CRIMINAL CASE WORKS

This is the path almost every criminal case follows, start to finish.

1. **The arrest.** An officer either takes someone into custody or issues a Notice to Appear (Form CR-02) for a minor offence. Either way the officer writes an Arrest Affidavit (Form CR-01) explaining what happened and why there was probable cause.
2. **Probable cause review.** A judge reads the affidavit within 24 hours and signs the bottom of Form CR-01. If the affidavit does not describe a crime, the defendant is released immediately - no hearing needed.
3. **First appearance.** The defendant sees a judge, is told what they are charged with, and is told their rights. The judge decides custody and bond on Form CR-06. If the defendant cannot afford a lawyer they fill out Form CR-09 and a Public Defender is appointed.
4. **Charging decision.** The State Attorney reviews the case and files an Information (Form CR-03), which is the document that formally charges the defendant. The prosecutor may add charges, reduce them, or decline to prosecute entirely.
5. **Arraignment.** The defendant enters a plea of guilty, not guilty, or no contest. Almost everyone pleads not guilty at this stage - it costs nothing and preserves every option.
6. **Discovery and motions.** Both sides exchange evidence. The defence may file a Motion to Suppress (Form CR-12) to exclude anything obtained unlawfully. The judge rules using Form JR-01.
7. **Plea negotiation.** Most cases end here. If the parties agree, they complete a Plea Agreement (Form CR-07), the defendant waives their rights in writing, and the judge decides whether to accept it.
8. **Trial.** If there is no agreement, the case is tried. The State must prove every element beyond a reasonable doubt. The defendant does not have to testify, call witnesses, or prove anything at all.
9. **Judgment and sentence.** The judge completes Form CR-10. This is the document that ends the case and tells the jail what to do.
10. **Probation, if ordered.** Form CR-11 sets the conditions. If the defendant breaks one, the probation officer files a violation on the same form and the judge can revoke.
11. **Appeal.** Thirty days to file Form AP-01 with the Appellate Court. Miss it and the right is gone.

### The single most common mistake

Pleading guilty at first appearance because you want the case over with. Do not. You have not seen the evidence, you have not spoken to a lawyer, and the prosecutor's first offer is almost never their best offer. Plead not guilty, ask for a public defender on Form CR-09, and decide later.

## Burdens of Proof

How sure the decision-maker has to be before ruling against someone. This changes depending on what is at stake.

| Standard                      | Roughly How Sure                   | Used For                                |
|-------------------------------|------------------------------------|-----------------------------------------|
| Beyond a reasonable doubt     | Near certainty                     | Every criminal conviction               |
| Clear and convincing evidence | Substantially more likely than not | Traffic infractions, some civil matters |

| Standard                      | Roughly How Sure                             | Used For                                  |
|-------------------------------|----------------------------------------------|-------------------------------------------|
| Preponderance of the evidence | More likely than not                         | Most civil cases and probation violations |
| Probable cause                | A reasonable officer would believe it        | Arrests, warrants, charging decisions     |
| Reasonable suspicion          | Specific facts suggesting something is wrong | Brief stops and detentions                |

### CHAPTER 3 - RIGHTS THAT APPLY IN EVERY CRIMINAL CASE

- **The right to remain silent.** You never have to answer questions. Saying so out loud is what triggers the protection - staying quiet without saying you are invoking it is weaker.
- **The right to a lawyer.** If you cannot afford one the Court appoints a Public Defender for free. Ask on Form CR-09.
- **The presumption of innocence.** The State proves guilt. You prove nothing.
- **The right to confront witnesses.** Anyone who accuses you has to appear and be cross-examined.
- **The right to a jury trial** on any charge that carries jail time.
- **The right to a speedy trial.** Asking for a continuance normally waives this for the length of the delay.
- **Protection from unreasonable search and seizure.** Evidence obtained in violation of this can be excluded using Form CR-12.
- **The right to appeal.** Thirty days from the judgment, no extensions.

### CHAPTER 4 - SUING A DEPARTMENT OR AN OFFICER

A large share of the civil docket consists of claims against a police department, a sheriff's office, or an individual officer. That kind of case carries pre-suit requirements an ordinary lawsuit does not, and skipping any of them gets the case dismissed before the merits are ever reached.

1. **File an Internal Affairs complaint first (Form AD-05).** Not technically required, but it creates a written record and forces the agency to investigate. Its findings become evidence later.
2. **Request the records (Form AD-03).** Ask for body camera footage, dispatch audio, the incident report, use of force reports, and the officer's disciplinary history. Do this early - footage gets overwritten.
3. **Serve a Notice of Claim (Form CV-04).** This is mandatory. The agency gets 45 days to investigate and respond. You may not file suit during that window.
4. **Wait out the 45 days,** or file earlier only if the agency denies the claim in writing before then.
5. **File the Complaint (Form CV-01)** with a Civil Cover Sheet (AD-01), and attach the stamped Notice of Claim. Without that attachment the department will move to dismiss under Form CV-06 and will win.
6. **Serve the Summons (Form CV-02).** The clock on the department's response does not start until service is complete and the return is filed.
7. **Discovery.** Use Form CV-07 for documents and Form CV-08 to depose the officers involved.
8. **Settle or try it.** Most of these resolve on Form CV-09. If a public entity is paying, a department head or the county attorney must approve.

#### Two defences you will meet every time

SOVEREIGN IMMUNITY protects the agency itself from many claims, and QUALIFIED IMMUNITY protects the individual officer unless the conduct violated a clearly established rule. Expect both to be raised in the Answer (Form CV-03). Neither is automatic - they are argued, and they can be beaten with a specific policy or order the officer ignored.

## Ordinary Civil Cases

Everything else - unpaid debts, damaged property, broken deals, evictions - follows a shorter path: Complaint (CV-01 or CV-05 for small claims) → Summons (CV-02) → Answer (CV-03) → discovery → pretrial conference → trial → Final Judgment (CV-10). Small claims skips discovery entirely and starts with a pretrial conference where a judge tries to settle it on the spot.

| Amount in Dispute                | Where It Goes     | Form to Start It | Time to Respond                   |
|----------------------------------|-------------------|------------------|-----------------------------------|
| \$8,000 or less                  | Small Claims      | CV-05            | Appear at the pretrial conference |
| \$8,001 - \$50,000               | County Civil      | CV-01            | 20 days                           |
| Over \$50,000                    | Circuit Civil     | CV-01            | 20 days                           |
| Any amount, government defendant | County or Circuit | CV-04 then CV-01 | 30 days                           |

## CHAPTER 5 - TRAFFIC

Traffic is the highest-volume part of the court system and the part most people encounter first. Every citation is one of two things, and the officer marks which on Form TR-01.

|                   | Civil Infraction                                | Criminal Traffic                                                           |
|-------------------|-------------------------------------------------|----------------------------------------------------------------------------|
| Examples          | Speeding, red light, no registration, equipment | DUI, reckless driving, fleeing, driving while suspended, leaving the scene |
| Jail possible     | No                                              | Yes                                                                        |
| Court appearance  | Optional unless the citation says otherwise     | Mandatory                                                                  |
| Right to a lawyer | No appointed counsel                            | Yes, including an appointed Public Defender                                |
| Burden of proof   | Clear and convincing evidence                   | Beyond a reasonable doubt                                                  |
| How it ends       | Pay, elect school, or contest on TR-04          | Plea (CR-07) or trial, then CR-10                                          |

A driver who receives a civil citation has 30 days to pick an option on Form TR-02: pay it, elect traffic school to avoid points, set up a payment plan, contest it at a hearing (Form TR-04), ask for a reduced fine, or prove they fixed a correctable problem (Form TR-03). Doing nothing is the worst option - the fine grows and the licence is suspended under Form TR-05.

### Contesting is a real option, and officers do lose

At a traffic hearing the State has to put on evidence. If the citing officer does not appear, the citation is normally dismissed. If they do appear, you get to cross-examine them about what they actually saw, how the speed was measured, and whether the device was calibrated. The trade-off is that losing can cost more than the ticket, because the Court may impose the full statutory fine plus court costs.

## CHAPTER 6 - APPEALS

An appeal is not a second trial. Nobody testifies. No new evidence is accepted. Nobody re-weighs whether a witness was believable. The appellate court reads the written record and answers one question: did the lower court apply the law correctly?

| Level                             | Reviews                                               | Form  | Takes the Case?  |
|-----------------------------------|-------------------------------------------------------|-------|------------------|
| Circuit Court, appellate capacity | County Court judgments, traffic rulings, small claims | AD-02 | Yes, as of right |
| Appellate Court of Florida        | Circuit Court judgments and sentences                 | AP-01 | Yes, as of right |

| Level                    | Reviews                   | Form  | Takes the Case?                        |
|--------------------------|---------------------------|-------|----------------------------------------|
| Supreme Court of Florida | Appellate Court decisions | AP-02 | Only if mandatory, or if it chooses to |

### The two things that kill appeals

- **Missing the 30 day deadline.** It is jurisdictional. No judge has the power to extend it, no matter how good the excuse.
- **Failing to preserve the error.** If nobody objected at the time, the appellate court will usually refuse to consider the issue at all. Object on the record, even when you know you will be overruled - that is what creates the right to appeal it later.

The Supreme Court is deliberately hard to reach. It must hear appeals from a sentence of life or death and from a decision striking down a statute. Everything else is discretionary, and the argument on Form AP-02 has to be about why the question matters to every future case, not why one particular defendant deserves a better outcome.

## CHAPTER 7 - COURTROOM CONDUCT

- Stand when the judge enters and when you address the Court. *Say Your Honour.*
- Speak only when it is your turn. Interrupting the judge or opposing counsel is the fastest route to a contempt finding.
- Address the Court, not the other side. Arguments are made to the judge.
- To object, stand and say *Objection* followed by one or two words of grounds. Save the explanation for when the judge asks.
- Never speak for a client who is represented. Never speak to a represented party without their lawyer present.
- Leave personal grievances outside. A courtroom argument that is really about something else is obvious to everyone present, including the judge.
- Do not fabricate evidence, coach a witness to lie, or misstate what the record says. It is the one thing that gets a legal character removed permanently.

### Common objections

| Objection                   | Means                                                         | Typical Response                |
|-----------------------------|---------------------------------------------------------------|---------------------------------|
| Relevance                   | This has nothing to do with the case                          | Counsel explains the connection |
| Hearsay                     | Repeating what someone said out of court to prove it was true | Identify an exception           |
| Leading                     | The question tells the witness the answer                     | Rephrase it as open-ended       |
| Speculation                 | The witness is guessing                                       | Establish personal knowledge    |
| Asked and answered          | This question was already covered                             | Move on                         |
| Argumentative               | The question is a speech, not a question                      | Rephrase                        |
| Improper character evidence | Using past bad acts to show the person is bad                 | Identify a proper purpose       |
| Foundation                  | Nothing establishes this exhibit is what you say it is        | Authenticate it first           |

## CHAPTER 8 - DEADLINES AT A GLANCE

| Event                                  | Deadline             | Form  |
|----------------------------------------|----------------------|-------|
| Judicial review of an arrest affidavit | 24 hours from arrest | CR-01 |
| First appearance                       | 24 hours from arrest | CR-06 |
| Response to a traffic citation         | 30 days              | TR-02 |
| Answer to a civil complaint            | 20 days from service | CV-03 |

| Event                                       | Deadline                           | Form          |
|---------------------------------------------|------------------------------------|---------------|
| Answer, government defendant                | 30 days from service               | CV-03         |
| Government response to a Notice of Claim    | 45 days                            | CV-04         |
| Response to a discovery request             | 30 days                            | CV-07         |
| Notice of deposition                        | At least 10 days before            | CV-08         |
| Service of a subpoena                       | At least 5 days before appearance  | GN-03         |
| Notice of hearing                           | At least 5 days before the hearing | GN-02         |
| Notice of appeal                            | 30 days from the judgment          | AD-02 / AP-01 |
| Appeal to the Supreme Court                 | 30 days from the decision below    | AP-02         |
| Agency response to a public records request | 10 days to acknowledge             | AD-03         |

## CHAPTER 9 - COURT ADMINISTRATION

### The offices that keep the courts running

A functioning court needs four offices staffed before it can hear a single case: a judge, a prosecutor, a defence attorney, and a clerk. Everything else is an improvement rather than a requirement. The clerk's office matters more than people expect - without someone maintaining the docket, cases quietly disappear and confidence in the courts goes with them.

| Office          | Core Duty                                      | Cannot Be Combined With                   |
|-----------------|------------------------------------------------|-------------------------------------------|
| Judge           | Decide contested matters and sign every order  | Prosecutor, defence counsel, or any party |
| Clerk of Court  | Docket, case files, fees, summonses, subpoenas | Judge in the same case                    |
| State Attorney  | Charging decisions and prosecution             | Defence counsel in any case               |
| Public Defender | Represent indigent defendants                  | Prosecution in any case                   |
| Probation       | Supervise sentences and report violations      | Arresting agency in the same case         |
| Bailiff         | Courtroom security and custody                 | Witness in the same case                  |

### Case numbering

Every case receives a number in the form **YY-TYPE-NUMBER**. The 123rd felony filed in 2026 is **26-CF-000123**. The number is assigned once, at intake, and never changes - including on appeal, where it is carried alongside the appellate number.

| Code     | Case Type                  | Court           |
|----------|----------------------------|-----------------|
| CF       | Felony                     | Circuit         |
| MM       | Misdemeanour               | County          |
| CT       | Criminal traffic           | County          |
| TR       | Civil traffic infraction   | County          |
| MO       | County ordinance violation | County          |
| CC       | County civil               | County          |
| CA       | Circuit civil              | Circuit         |
| SC       | Small claims               | County          |
| A-2026-  | Appellate case             | Appellate Court |
| SC-2026- | Supreme Court case         | Supreme Court   |

### Docket management

- Every filing is stamped with the date and hour it is received. The stamp, not the date written on the document, controls whether a deadline was met.
- A case with no activity for 60 days is set for a status conference. A case with no activity for 180 days is dismissed for lack of prosecution after notice.
- Orders are published as soon as they are signed. A ruling nobody can read is a ruling nobody can rely on or appeal.
- The Clerk may not give legal advice, but may always tell a party which form to use, what the fee is, and when the hearing is.

### Canons of judicial and professional conduct

- A judge shall not preside over a matter involving their own department, their own employer, or any party with whom they have a personal dispute. Recusal is disclosed on the record.
- A prosecutor's duty is to see that justice is done, not to win. That includes disclosing evidence that helps the defence, and declining to file a charge the evidence does not support.
- Defence counsel owes undivided loyalty to the client, and may not represent two defendants whose interests conflict.
- No attorney may knowingly present false evidence or allow a witness to testify falsely, whatever the client wants.
- A defendant who cannot obtain counsel is entitled to a continuance, not a conviction.
- Ex parte contact with a judge about a pending matter is prohibited, except in the narrow emergencies the rules allow.

## APPENDIX - COMPLETE FORM INDEX

| Form  | Title                                         | Who Files It            |
|-------|-----------------------------------------------|-------------------------|
| CR-01 | Arrest Affidavit and Probable Cause Statement | Law enforcement         |
| CR-02 | Notice to Appear                              | Law enforcement         |
| CR-03 | Information - Formal Charging Document        | State Attorney          |
| CR-04 | Arrest Warrant and Application                | Law enforcement / Court |
| CR-05 | Search Warrant Application and Warrant        | Law enforcement / Court |
| CR-06 | Pretrial Release and Bond Order               | Court                   |
| CR-07 | Plea Agreement and Waiver of Rights           | Both parties            |
| CR-08 | Notice of Appearance of Counsel               | Attorney                |
| CR-09 | Application for Court-Appointed Counsel       | Defendant               |
| CR-10 | Judgment and Sentence                         | Court                   |
| CR-11 | Order of Probation and Violation Report       | Court / Probation       |
| CR-12 | Motion to Suppress Evidence                   | Defence                 |
| CV-01 | Civil Complaint                               | Plaintiff               |
| CV-02 | Summons                                       | Clerk                   |
| CV-03 | Answer and Affirmative Defenses               | Defendant               |
| CV-04 | Notice of Claim Against a Government Entity   | Claimant                |
| CV-05 | Small Claims Statement of Claim               | Plaintiff               |
| CV-06 | Motion to Dismiss                             | Defendant               |
| CV-07 | Request for Production of Documents           | Any party               |
| CV-08 | Notice of Deposition                          | Any party               |
| CV-09 | Settlement Agreement and Release of Claims    | Both parties            |
| CV-10 | Final Judgment - Civil                        | Court                   |



| Form  | Title                                             | Who Files It        |
|-------|---------------------------------------------------|---------------------|
| TR-01 | Uniform Traffic Citation                          | Law enforcement     |
| TR-02 | Election of Options - Response to Citation        | Driver              |
| TR-03 | Affidavit of Compliance - Correctable Violation   | Driver              |
| TR-04 | Request for Traffic Hearing                       | Driver              |
| TR-05 | Driver License Suspension and Reinstatement Order | Court / DMV         |
| GN-01 | General Motion                                    | Any party           |
| GN-02 | Notice of Hearing                                 | Any party           |
| GN-03 | Subpoena                                          | Clerk / Attorney    |
| GN-04 | Witness List and Exhibit List                     | Any party           |
| GN-05 | Filing Cover Sheet and Certificate of Service     | Any party           |
| GN-06 | Motion for Continuance                            | Any party           |
| AD-01 | Civil Cover Sheet                                 | Plaintiff           |
| AD-02 | Notice of Appeal                                  | Appellant           |
| AD-03 | Public Records Request                            | Anyone              |
| AD-04 | Application for Admission to the Bar              | Aspiring attorney   |
| AD-05 | Internal Affairs Complaint                        | Anyone              |
| AD-06 | Petition to Seal or Expunge a Criminal Record     | Defendant           |
| AD-07 | Request for Transcript and Record on Appeal       | Appellant           |
| AD-08 | Jury Summons and Juror Questionnaire              | Clerk / Juror       |
| JR-01 | Judicial Ruling and Order                         | Judge               |
| AP-01 | Notice of Appeal of Sentence - Appellate Court    | Appellant           |
| AP-02 | Notice of Appeal to the Supreme Court             | Appellant           |
| AP-03 | Appellate Brief                                   | Any party on appeal |